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April 7, 2026

ENGROSSED HOUSE
BILL NO. 3417

By: Strom, West (Josh), Archer,
Crosswhite Hader,
Dobrinski, Stinson, Fugate,
Kendrix, Kelley, McCane,
Chapman, Wolfley, and Menz
of the House

and

Alvord of the Senate

An Act relating to cities and towns; amending 11 O.S. 2021, Section 10-116, which relates to purchases and sales by city manager and competitive bidding; clarifying that council requirements shall be in addition to the provisions of the Public Competitive Bidding Act; enacting a new section to combine procedures for reverse auction bidding that are applicable to all political subdivisions and public trusts; repealing 11 O.S. 2021, Sections 17-115 and 17-115.1, which relate to reverse auction bidding procedure; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 10-116, is amended to read as follows:

Section 10-116. A. The city manager shall contract for, purchase, or issue purchase authorizations for all supplies, materials, and equipment for offices, departments, and agencies of

1 the city government, subject to any regulations which the council
2 may prescribe. Every contract or purchase exceeding an amount to be
3 established by the council shall require the prior approval of the
4 council. The city manager may also sell or transfer to or between
5 offices, departments, and agencies, surplus or obsolete supplies,
6 materials, and equipment, subject to regulations the council may
7 prescribe.

8 B. The council may prescribe requirements and procedures for
9 competitive bidding. Notice and opportunity for competitive bidding
10 shall be given before a purchase or contract for supplies,
11 materials, or equipment is made, and before a sale of any surplus or
12 obsolete supplies, materials, or equipment is made, in accordance
13 with regulations the council may prescribe. The council shall not
14 exempt a particular contract, purchase, or sale from the requirement
15 of competitive bidding. The provisions of this subsection shall be
16 in addition to the provisions of Section 140 of Title 61 of the
17 Oklahoma Statutes.

18 C. The council may transfer some or all of the power granted to
19 the city manager pursuant to the provisions of this section to an
20 employee appointed by and subordinate to the city manager.

21 SECTION 2. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 141 of Title 61, unless there is
23 created a duplication in numbering, reads as follows:

1 A. A political subdivision or any public trust of which such
2 subdivision is beneficiary or any nonappropriated governmental
3 agency or instrumentality of the state is authorized to use a
4 reverse auction bidding procedure to obtain bids for the purchase of
5 goods or services of any type of kind. The reverse auction shall be
6 a real-time bidding process taking place at a previously scheduled
7 time and Internet location and for a previously established
8 duration, in which multiple suppliers, anonymous to each other,
9 submit bids to provide the goods or services. The reverse auction
10 procedure may be used as an alternative to any state law applicable
11 to the purchase of the goods or services.

12 B. The procedure shall provide:

13 1. A bid opening and bid closure. At the opening date and
14 time, the political subdivision or public trust shall begin
15 accepting reverse auction electronic bids. Reverse auction bids
16 shall be accepted until the bid closure, except as provided by
17 paragraph 6 of this subsection, unless the political subdivision or
18 public trust determines it is in the best interest of the political
19 subdivision or public trust to extend the closing time and notifies
20 the reverse auction bidders of the extended closing time by public
21 announcement at the Internet location at least fifteen (15) minutes
22 prior to the original closing time;

1 2. The posting of all reverse auction bids electronically and
2 updating of bids on a real-time basis by the political subdivision
3 or public trust;

4 3. The authorization for the political subdivision or public
5 trust to require bidders to register before the opening date and
6 time and, as part of that registration, require bidders to agree to
7 any terms, conditions, or other requirements of the solicitation or
8 applicable acts;

9 4. The authorization for the political subdivision or public
10 trust to also require potential bidders to prequalify as bidders and
11 to restrict solicitations to prequalified online and reverse auction
12 bidders;

13 5. The retention of the authority of the political subdivision
14 or public trust to determine the criteria that will be used as the
15 basis for making awards; and

16 6. The authorization for the political subdivision or public
17 trust to determine it is in the best interest of the municipality or
18 public trust to allow it to accept an electronic bid after the
19 specified official closing date and time, in the event the political
20 subdivision or public trust determines that a significant error or
21 event occurred that affected the electronic receipt of any reverse
22 auction bid by the political subdivision or public trust.

23 C. All bids submitted electronically through the reverse
24 auction bidding process pursuant to this section are subject to the

1 same public disclosure laws that govern bids received pursuant to
2 any other law of this state governing procurement procedures for a
3 political subdivision or public trust.

4 D. All remedies available to the political subdivision or
5 public trust and suppliers through a bid process pursuant to any
6 other law of this state are also available to the political
7 subdivision or public trust reverse auction bidders in a reverse
8 auction bidding process.

9 E. The procedures set out in this section may be used to obtain
10 acquisitions or award contracts for all needed operations or
11 purchase orders.

12 SECTION 3. REPEALER 11 O.S. 2021, Section 17-115, is
13 hereby repealed.

14 SECTION 4. REPEALER 11 O.S. 2021, Section 17-115.1, is
15 hereby repealed.

16 SECTION 5. This act shall become effective November 1, 2026.

17 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
18 April 7, 2026 - DO PASS
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